

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF BALYUK AND OTHERS v. RUSSIA

(Applications nos. 22656/21 and 35 others –
see appended list)

JUDGMENT

STRASBOURG

16 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Balyuk and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of nationwide protests in support of the jailed opposition leader, Aleksey Navalnyy. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	22656/21 02/04/2021	**Maksim Andreyevich BALYUK** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Tomsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 17,000	Tomsk Regional Court 05/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
2.	24208/21 22/04/2021	**Ruslan Vasilyevich RAZGULIN** 1975	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Tver 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tver Regional Court 10/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 21/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	38633/21 15/07/2021	**Ilya Vitalyevich NETESOV** 1992	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 4.23 p.m. on 31/01/2021 until 2.30 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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4.	38636/21 15/07/2021	**Danila Dmitriyevich RUKHOVICH** 1994	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 9.50 a.m. until 5 p.m. on 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	38640/21 15/07/2021	**Ilya Vasilyevich VAKHRUSHEV** 1984	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 4.30 p.m. on 31/01/2021 until 1 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	38647/21 15/07/2021	**Nikita Mikhaylovich PUZANKOV** 1993	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Samara 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Samara Regional Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 8.38 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	40519/21 21/07/2021	**Vladislav Vladimirovich KUDRYAVTSEV** 1997	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 28/01/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 4.30 p.m. on 23/01/2021 until 5.10 p.m. on 25/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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8.	41156/21 20/06/2021	**Sergey Sergeyevich SUKHOVIRSKIY** 1990	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 31/01/2021 until the morning on 01/02/2021, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
9.	41261/21 03/08/2021	**Andrey Georgiyevich TATARESKU** 2000	Danshov Vadim Eduardovich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 5.50 p.m. on 31/01/2021 until 12.45 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
10.	45309/21 27/08/2021	**Boris Mikhaylovich NIKOLSKIY** 1970	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 02/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11.30 p.m. on 02/02/2021 until 2.10 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	45472/21 12/08/2021	**Adelina Mansurovna YAGFAROVA** 2001	Shagiyeva Regina Ilgizovna Leninigorsk	Rally "Free Navalnyy" Naberezhnyye Chelny 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 03/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.10 p.m. on 31/01/2021 until 4 p.m. on 01/02/2021.	4,000

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12.	45479/21 30/08/2021	**Olga Vladimirovna OGNEVA** 1991	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 20/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
13.	45489/21 12/08/2021	**Dilyara Mudarisovna ILYASOVA** 1995	Shagiyeva Regina Ilgizovna Leninigorsk	Rally "Free Navalnyy" Naberezhnyye Chelny 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 10/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021.	4,000
14.	45543/21 12/08/2021	**Dmitriy Ilnurovich VALEYEV** 1994	Shagiyeva Regina Ilgizovna Leninigorsk	Rally "Free Navalnyy" Naberezhnyye Chelny 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 10/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.30 p.m. on 31/01/2021 until 4 p.m. on 01/02/2021.	4,000
15.	45561/21 25/08/2021	**Vasiliy Ivanovich NIKITENKO** 1987	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Tomsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tomsk Regional Court 05/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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16.	45616/21 24/08/2021	**Pavel Vladimirovich RAKEVICH** 1984	Bushmakov Aleksey Vladimirovich Yekaterinburg	Rally "Free Navalnyy" Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	20 hours of community work	Sverdlovsk Regional Court 21/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	45623/21 31/08/2021	**Kseniya Yevgenyevna KAPRANOVA** 1985	Mikhaylova Varvara Dmitriyevna St Petersburg	Rally "Free Navalnyy" Ryazan 21/04/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	Ryazan Regional Court 17/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 7.40 p.m. on 21/04/2021 until 10.40 a.m. on 22/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	45876/21 10/09/2021	**Kirill Borisovich BOKAREV** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 5 days	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.49 p.m. on 31/01/2021 until 8.15 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
19.	46802/21 15/09/2021	**Yevgeniy Aleksandrovich CHILIKOV** 1986	Valiyeva Elza Albertovna Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 12/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
20.	49662/21 16/09/2021	**Ivan Aleksandrovich PERMYAKOV** 1999	Dubrovina Marina Alekseyevna Novorossiysk	Rally "Free Navalnyy" Anapa 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 17/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2 p.m. until 7.20 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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21.	52366/21 18/09/2021	**Yanis Vladimirovich TOVKES** 1985	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.30 p.m. on 31/01/2021 until 9 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
22.	53504/21 07/10/2021	**Viktoriya Vladimirovna DOLNIKOVA** 1998	Dubrovina Marina Alekseyevna Novorossiysk	Rally "Free Navalnyy" Anapa 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Krasnodar Regional Court 07/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.50 p.m. until 6 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	54944/21 29/10/2021	**Andrey Ivanovich KOSHKIN** 1983	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.40 p.m. until 8.50 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	55510/21 23/10/2021	**Ivan Vitalyevich ORLOV** 2002	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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25.	55643/21 19/10/2021	**Nikita Konstantinovich RAMENSKIY** 2000	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
26.	55924/21 26/10/2021	**Mariya Eduardovna SYRTSEVA** 2000	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 27/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
27.	55927/21 26/10/2021	**Yevgeniy Vladimirovich IVANOV** 1992	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 27/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
28.	56115/21 23/10/2021	**Irina Vladlenovna STARISTINA** 1995	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
29.	56425/21 15/11/2021	**Danila Aleksandrovich GALKIN** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Vladimir 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Vladimir Regional Court 25/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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30.	56707/21 15/11/2021	**Olga Nikolayevna BAZHENOVA** 1992	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Syktyvkar 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Komi Republic 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
31.	56732/21 15/11/2021	**Aleksandr Sergeyevich KALININ** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Tver 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tver Regional Court 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
32.	59244/21 12/11/2021	**Nikolay Alekseyevich SLYUSAREV** 1987	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6 p.m. on 23/01/2021 until 1.06 a.m. on 24/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
33.	60100/21 19/11/2021	**Miron Igorevich SAMKOV** 2002	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 03/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.30 p.m. until 6 a.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
34.	60115/21 20/11/2021	**Ilya Kakhaberovich PLYUSNIN** 1992	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
35.	60646/21 23/11/2021	**Yelena Borisovna SIROTKINA** 1987	Aksenova Darya Dmitriyevna Kolomna	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
36.	61233/21 02/12/2021	**Aleksandr Leonidovich AVDEYEV** 1964	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Kirov 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Kirov Regional Court 17/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.